

PLJ 2022 Lahore 85

Present: ABID AZIZ SHEIKH, J.

ARIF MEHMOOD--Petitioner

versus

ADDITIONAL DISTRICT JUDGE etc.--Respondents

W.P. No. 64646 of 2020, decided on 16.9.2021.

Punjab Rent Premises Act, 2009 (VII of 2009)--

---S. 13--Ejectment petition--Rent deed--Default in payment of rent--No further extension--Challenge to--Claim of petitioner is that he is not tenant through lease agreement but through oral lease agreement with respondents father since last fourty years ago--Plea of petitioner is not supported by any record--In absence of written agreement as to period, tenancy would be on month to month basis and terminable on 30 days notice--Claim of pagri, amount against renovation and payment of tax is also not substantiate through any independent evidence--Petitioner's own claim that rent was not received by respondents also prove fact that rent was due and petitioner defaulted in payment of rent as claimed in ejectment petition--Petition dismissed. [Pp. 86 & 87] A, B, C & D

2015 CLC 1187, 2016 MLD 1095, PLJ 2012 Lah. 3 ref. 2019 MLD 792.

Mrs. Naila Mushtaq Ahmed Dhoon, Advocate for Petitioner.

Date of hearing: 16.9.2021.

ORDER

This constitutional petition is directed against the judgments and decrees dated 01.2.2020 and 11.11.2020 passed by learned Special Judge (Rent) and learned Appellate Court, respectively.

2. Relevant facts are that Respondents No. 3 to 7 filed ejectment petition against the petitioner claiming that they are owner of shop No. 3 situated at Aftab Building at Railway Road near street Rex Cinema Sialkot (shop), which was taken on rent by the petitioner through rent deed dated 22.2.2017 for period of 11 months at the rate of Rs. 6500/- per month. However, not only the petitioner defaulted in payment of rent but lease period was also not further extended. The petitioner filed application for leave to defend which was however dismissed and ejectment order was passed on 01.2.2020, which order was upheld by learned Appellate Court on 11.11.2020, hence this constitutional petition.

3. Learned counsel for the petitioner submits that rent deed dated 22.2.2017 is a fictitious document and petitioner is tenant of the shop from father of the respondents (namely Allah Lok) for the last 40 years through oral agreement. Further submits that the petitioner never defaulted

in the payment of monthly rent rather it was the respondents who refused to receive the rent, hence impugned judgments are not sustainable.

4. Arguments heard. It is not disputed by the petitioner that he is tenant of the shop in question. However, the claim of the petitioner is that he is not tenant through lease agreement dated 22.2.2017 but through oral lease agreement with the respondents father since last forty years ago. The above plea of the petitioner is not supported by any record. On the other hand, the respondent placed on record tenancy agreement dated 22.2.2017 for period of 11 months commencing from 01.1.2017 to 31.8.2018 which was not further extended. On the expiry of aforesaid lease period, tenancy was month to month basis and terminable on 30 days notice. Reliance in this regard is placed on *Muhammad Taufeeq vs. Muhammad Nawaz etc* (2015 CLC 1187), *Muhammad Nayab vs. Additional District Judge etc.* (2016 MLD 1095) and *Waqar Zafar etc. vs. Haji Mazhar Hussain etc* (PLD 2018 Supreme Court 81).

5. Regarding claim of the petitioner that he is tenant of respondent father through oral lease for last 40 years, suffice it to observe that it is settled law that in absence of written agreement as to the period, the tenancy would be on month to month basis and terminable on 30 days notice. Reliance is placed on *Muhammad Taufeeq vs. Muhammad Nawaz etc* (2015 CLC 1187), *Muhammad Nayab vs. Additional District Judge etc.* (2016 MLD 1095) and *Aftab Ahmad Raja vs. Malik Faizullah Khan etc* (PLJ 2012 Lahore 3). Further lease which is beyond period of 11 months, if not registered shall have no legal value and after 11 months, the said tenancy shall also be treated on month to month basis. Reliance is placed on *M.K. Muhammad etc vs. Muhammad Abu Bakar* (1993 SCMR 200), *Habib Bank Limited vs. Dr. Munawar Ali Siddiqui* (1991 SCMR 1185) and *Messrs Iris Communication Pvt. Ltd vs. Ahmad Khalid* (2019 MLD 772).

6. The claim of pagri, amount against renovation and payment of tax is also not substantiated through any independent evidence rather same is negated by lease deed dated 22.2.2017. The petitioners own claim that rent was not received by the respondents also proves the fact that rent was due and petitioner defaulted in payment of rent as claimed in the ejectment petition.

7. In view of above discussion, no illegality is found in the impugned judgments, therefore, this petition is **dismissed in limine**.

(Y.A.) Petition dismissed